

STATE OF NEW YORK

11144--A

IN ASSEMBLY

April 24, 2026

Introduced by M. of A. KASSAY, STECK, GLICK, HEVESI -- read once and referred to the Committee on Science and Technology -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to prohibiting the manufacture and sale of chatbot toys; and providing for the repeal of such provisions upon the expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new article
2 48 to read as follows:

ARTICLE 48

PROHIBITION ON CHATBOT TOYS

Section 1800. Definitions.

1801. Prohibition.

1802. Enforcement.

1803. Severability.

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9 § 1800. Definitions. As used in this article, the following terms
10 shall have the following meanings:

11 1. "AI companion" shall have the same definition as set forth in
12 subdivision four of section seventeen hundred of this chapter.

13 2. "Chatbot toy" shall mean when an AI companion is embedded in or
14 integrated with a children's toy.

15 3. "Children's toy" shall mean as defined in subdivision (g) of 15 USC
16 § 2057c or any successor provision thereof.

17 4. "User" shall mean any person who is a consumer of a chatbot toy and
18 who is not an operator, agent, affiliate, developer, manufacturer, sell-
19 er, reseller, distributor, or commercial provider of such toy.

20 5. "Operator" shall mean any person, partnership, association, firm,
21 or business entity, or any member, affiliate, subsidiary or beneficial
22 owner thereof, who operates or provides an AI companion in a children's
23 toy.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14962-04-6

1 § 1801. Prohibition. No person, firm, corporation, association, part-
2 nership, business entity, or agent, employee, affiliate, beneficial
3 owner, or subsidiary thereof, shall manufacture, exchange, hold for
4 sale, distribute, or sell any chatbot toy in this state.

5 § 1802. Enforcement. Whenever the attorney general shall believe from
6 evidence satisfactory to them that an operator has engaged in or is
7 about to engage in any of the acts or practices stated to be unlawful in
8 this article, they may bring an action in the name and on behalf of the
9 people of the state of New York to enjoin an operator from continuing
10 such unlawful acts or practices, and may seek civil penalties of up to
11 fifteen thousand dollars per day for each violation. If it shall appear
12 to the satisfaction of the court or justice that the defendant has
13 violated section eighteen hundred one of this article, no proof shall be
14 required that any person has been injured thereby. In such action
15 preliminary relief may be granted under article sixty-three of the civil
16 practice law and rules.

17 § 1803. Severability. If any clause, sentence, paragraph, subdivision,
18 section or part of this article shall be adjudged by any court of compe-
19 tent jurisdiction to be invalid, such judgment shall not affect, impair,
20 or invalidate the remainder thereof, but shall be confined in its opera-
21 tion to the clause, sentence, paragraph, subdivision, section or part
22 thereof directly involved in the controversy in which such judgment
23 shall have been rendered. It is hereby declared to be the intent of the
24 legislature that this article would have been enacted even if such
25 invalid provisions had not been included herein.

26 § 2. This act shall take effect on the ninetieth day after it shall
27 have become a law and shall expire and be deemed repealed five years
28 after such effective date. Effective immediately, the addition, amend-
29 ment and/or repeal of any rule or regulation necessary for the implemen-
30 tation of this act on its effective date are authorized to be made and
31 completed on or before such effective date.